



THE
COURT OF APPEAL

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OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-CA 1

IN THE MATTER OF

Did the First Instance court err in law by applying s. 8 (first occurrence, forward duty) before completing the s. 5 Bolam inquiry, such that the ruling in [2026] REALM-PC 1 should be set aside?

Before:

Blackmere J, Goffe J, Elden J, Aldermere J (presiding)

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

OUTCOME

1. Appeal dismissed unanimously.
2. ---

PANEL OPINIONS SUMMARY

3. Blackmere J (textualist): Dismissed. The statute's plain text at s. 8 contains the phrase "judged against reasonableness" which is a reference to the s. 5 standard. A court that applies s. 8 necessarily applies s. 5. The sequencing complaint describes a structural impossibility.
4. Goffe J (pragmatist): Dismissed. The appellant's real complaint is with the evaluative outcome of the Bolam inquiry, not with whether it was conducted. That is a merits challenge dressed as a procedural one and does not ground an appeal.
5. Elden J (precedent-hawk): Dismissed. No authority establishes that s. 5 and s. 8 must be applied under explicitly labelled sequential headings. The substance of the inquiry is what matters; the form of its narration is not reviewable.
6. ---

RATIO DECIDENDI - THE BINDING HOLDING

The appeal is dismissed unanimously. The ground of appeal - that Bowan J applied s. 8 before completing the s. 5 Bolam inquiry - is not made out on a fair reading of the judgment below. Bowan J identified the s. 5 standard expressly, conducted the Bolam inquiry across the full artefact set, reached an affirmative finding, and only then invoked s. 8 to characterise the citation-numbering gap as generating a forward duty rather than a present breach. The sequencing complaint is further defeated by the structure of the statute itself: s. 8 cannot be applied without implicitly applying s. 5, because the reasonableness against which a novel gap is judged is the s. 5 standard. A procedural complaint that produces no different outcome on the merits does not found an appeal under s. 12. [2026] REALM-PC 1 stands as good law. ---

OBITER DICTA

Where a judgment invokes s. 8 in the wake of a completed s. 5 Bolam analysis, it is good practice - though not required - to include a brief explicit marker indicating that the s. 5 stage is closed before transitioning to the s. 8 characterisation. Such a marker would forestall sequencing complaints of the kind raised here. Courts are not obliged to narrate their logic in a formulaic checklist, but a transitional sentence costs little and reduces appellate attrition. The forward duty recorded under s. 8 in [2026] REALM-PC 1 - deterministic citation numbering as a necessary condition for v1 - is confirmed as binding and should be discharged before any v1 release is considered. ---

ORDER - REMEDY

None. No breach found. The forward duty identified at first instance stands. ---

GOOD-LAW

Citation: [2026] REALM-CA 1

L LEXBY - PLAIN ENGLISH TRANSLATION

Lexby is an officer of this court. The bench speaks; Lexby translates.

SUMMARY

The appellant argued that Bowan J had skipped a step - run the Bolam test - before invoking the forward-duty provision. The Court of Appeal read the judgment below carefully and found the step was there: Bowan J asked whether a responsible body of competent practice would endorse the release, said yes, and only then described the citation-numbering gap as a forward duty rather than a present breach. Beyond that, the three judges noted that the two provisions are structurally linked - you cannot apply one without the other - so the sequencing complaint describes something that is legally impossible. The earlier ruling stands. The citation-numbering forward duty is confirmed binding.

WHAT THIS MEANS IN PRACTICE

[2026] REALM-PC 1 is good law and is not disturbed. The obligation to build deterministic citation numbering before v1 remains.

APPEAL ROUTE

Permission to appeal to the Supreme Court may be sought on an arguable point of law or a binding-precedent conflict (VPR 3). Given the unanimous panel and the structural reasoning, any further appeal would face a high bar.

Vibe Justice System